

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 2959

By: Bashore

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 1210.163, as last amended by Section 3, Chapter 260, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.163), which relates to student abuse or neglect reporting; requiring superintendents and school administrators to report suspected abuse by school employees to law enforcement within twenty-four hours; requiring reporting before school investigation; prohibiting interviews of suspected involved parties until notification of and interviews by law enforcement; establishing duty to report regardless of employment status of accused; updating references; requiring employees to sign an attestation of duties to report abuse or neglect; defining term; requiring a written report from school resource officers under certain circumstances; amending Section 1, Chapter 297, O.S.L. 2024 (70 O.S. Supp. 2025, Section 6-401), which relates to school personnel electronic communication with students; requiring immediate notification to law enforcement for violations; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.163, as last amended by Section 3, Chapter 260, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.163), is amended to read as follows:

Section 1210.163. A. Every school employee having reason to believe that a student under the age of eighteen (18) years is a

1 victim of abuse or neglect shall report the matter immediately to
2 the Department of Human Services and local law enforcement. Reports
3 to the Department shall be made to the hotline provided for in
4 Section 1-2-101 of Title 10A of the Oklahoma Statutes. Any
5 allegation of abuse or neglect reported in any manner to a county
6 office shall immediately be referred to the hotline by the
7 Department.

8 B. Every school employee having reason to believe that a
9 student age eighteen (18) years or older is a victim of abuse or
10 neglect shall report the matter immediately to local law
11 enforcement.

12 C. 1. In addition to the reporting requirements of this
13 section, any superintendent or school administrator of a private
14 school or public school district who has reason to believe, or
15 receives an allegation or disclosure, that a school employee is
16 involved in the abuse or neglect of a student shall report the
17 matter within twenty-four (24) hours to local law enforcement.

18 2. All disclosures or allegations made under this subsection
19 shall be reported to law enforcement prior to any investigation by
20 the school or school board, or questioning of the subject of the
21 accusation.

22 3. No school investigator, administrator, or official shall
23 conduct interviews of the subject of the accusation or engage in
24 disciplinary proceedings until law enforcement has been notified and

1 has had the opportunity to interview the involved parties, unless
2 law enforcement determines that an immediate school response is
3 necessary to protect student safety.

4 4. The resignation, termination, transfer, or other separation
5 from employment of the subject of an allegation or disclosure shall
6 not relieve any person of the duty to report to law enforcement as
7 required by this subsection.

8 D. In reports required by subsection A ~~or~~, B, or C of this
9 section, local law enforcement shall keep confidential and redact
10 any information identifying the reporting school employee unless
11 otherwise ordered by the court. A school employee with knowledge of
12 a report required by subsection A ~~or~~, B, or C of this section shall
13 not disclose information identifying the reporting school employee
14 unless otherwise ordered by the court or as part of an investigation
15 by local law enforcement or the Department.

16 ~~D.~~ E. Any superintendent or school administrator of a private
17 school or public school district who knowingly and willfully fails
18 to promptly report or interferes with the prompt reporting of abuse
19 or neglect shall be subject to the penalties provided for in Section
20 ~~2 of this act~~ 593 of Title 21 or Section 1-2-101 of Title 10A of the
21 Oklahoma Statutes. As used in this ~~subsection~~ section, "school
22 administrator" means a principal, assistant principal, or any other
23 person who serves in a supervisory or administrative capacity in a
24 private school or public school district.

1 ~~E.~~ F. Every school employee shall annually sign an attestation
2 acknowledging his or her responsibility to report suspected child
3 abuse or neglect pursuant to this section. Failure to sign an
4 attestation does not relieve school personnel from the obligations
5 created in this section, nor shall such failure constitute a defense
6 to criminal liability arising under Sections 593 of Title 21 or 1-2-
7 101 of Title 10A of the Oklahoma Statutes.

8 G. For the purposes of this section, "child abuse and neglect"
9 shall include, but not be limited to:

10 1. Child abuse as defined in Section 843.5 of Title 21 of the
11 Oklahoma Statutes;

12 2. Sexual abuse or sexual exploitation as defined in Section 1-
13 1-105 of Title 10A of the Oklahoma Statutes;

14 3. Contributing to the delinquency of a minor as defined in
15 Section 856 of Title 21 of the Oklahoma Statutes;

16 4. Trafficking in children, as defined in Section 866 of Title
17 21 of the Oklahoma Statutes;

18 5. Incest as described in Section 885 of Title 21 of the
19 Oklahoma Statutes;

20 6. Forcible sodomy, as described in Section 888 of Title 21 of
21 the Oklahoma Statutes;

22 7. Maliciously, forcibly or fraudulently taking or enticing a
23 child away, as described in Section 891 of Title 21 of the Oklahoma
24 Statutes;

1 8. Soliciting or aiding a minor child to perform or showing,
2 exhibiting, loaning or distributing obscene material or child sexual
3 abuse material, as described in Section 1021 of Title 21 of the
4 Oklahoma Statutes;

5 9. Procuring or causing the participation of any minor child in
6 any child sexual abuse material or knowingly possessing, procuring
7 or manufacturing child sexual abuse material, as described in
8 Section 1021.2 of Title 21 of the Oklahoma Statutes;

9 10. Permitting or consenting to the participation of a minor
10 child in any child sexual abuse material, as described in Section
11 1021.3 of Title 21 of the Oklahoma Statutes;

12 11. Facilitating, encouraging, offering or soliciting sexual
13 conduct with a minor, as described in Section 1040.13a of Title 21
14 of the Oklahoma Statutes;

15 12. Offering or offering to secure a minor child for the
16 purposes of prostitution or any other lewd or indecent act, as
17 described in Section 1087 of Title 21 of the Oklahoma Statutes;

18 13. Causing, inducing, persuading or encouraging a minor child
19 to engage or continue to engage in prostitution, as described in
20 Section 1088 of Title 21 of the Oklahoma Statutes;

21 14. Rape or rape by instrumentation, as described in Sections
22 1111.1 and 1114 of Title 21 of the Oklahoma Statutes;

23 15. Making any oral, written or electronically or computer-
24 generated lewd or indecent proposals to a minor child under the age

1 of sixteen (16) as described in Section 1123 of Title 21 of the
2 Oklahoma Statutes; and

3 16. Sexual battery, when committed upon a person who is at
4 least sixteen (16) years of age and is less than twenty (20) years
5 of age and is a student, or in the legal custody or supervision of
6 any public or private elementary or secondary school, or technology
7 center school, by a person who is eighteen (18) years of age or
8 older and is an employee of a private school or public school
9 system.

10 H. 1. For the purposes of this section, "local law
11 enforcement" means a law enforcement agency independent of the
12 school district and shall not include a school resource officer
13 employed by the district unless directed by the independent law
14 enforcement agency.

15 2. When a school resource officer is utilized pursuant to this
16 subsection, the officer shall submit a written report to the
17 independent law enforcement agency describing the circumstances and
18 any actions taken.

19 SECTION 2. AMENDATORY Section 1, Chapter 297, O.S.L.
20 2024 (70 O.S. Supp. 2025, Section 6-401), is amended to read as
21 follows:

22 Section 6-401. A. As used in this section:

23 1. "Electronic or digital communication" includes, but is not
24 limited to, emails, text messages, instant messages, direct

1 messages, social media messages, messages sent through software
2 applications, and any other electronic digital means of
3 communication; and

4 2. "School personnel" means teachers, coaches, administrators,
5 school bus drivers, or any other persons employed full-time or part-
6 time by a public school or charter school.

7 B. School personnel engaging in electronic or digital
8 communication with an individual student shall include the student's
9 parent or guardian in any electronic or digital communication,
10 unless such communication is on a school-approved platform and
11 related to school and academic communications.

12 C. Exceptions to the requirement in subsection B of this
13 section may be made in case of an emergency, subject to subsequent
14 notification to the parent or guardian. School personnel shall make
15 reasonable efforts to use school-approved platforms, systems, or
16 applications that allow automatic inclusion of parents or guardians
17 in communications with students.

18 D. Schools shall provide training, developed by the State
19 Department of Education, for school personnel on the student
20 communication requirements of this section.

21 E. Any school personnel who is reported to be in violation of
22 subsection B of this section shall be put on administrative leave
23 while the school district investigates the incident and notifies the
24 board of education. If the investigation finds that no misconduct

1 occurred, the school personnel shall be reinstated and the incident
2 shall be noted in the school personnel's employee file. If the
3 investigation finds misconduct occurred, the school personnel shall
4 be disciplined according to the school district board of education's
5 policy, up to and including termination of employment, ~~and the~~
6 ~~incident shall be reported to law enforcement pursuant to Section~~
7 ~~1210.163 of Title 70 of the Oklahoma Statutes.~~

8 F. Law enforcement shall be immediately notified of any
9 violation of subsection B of this section pursuant to Section
10 1210.163 of Title 70 of the Oklahoma Statutes.

11 SECTION 3. This act shall become effective July 1, 2026.

12 SECTION 4. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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